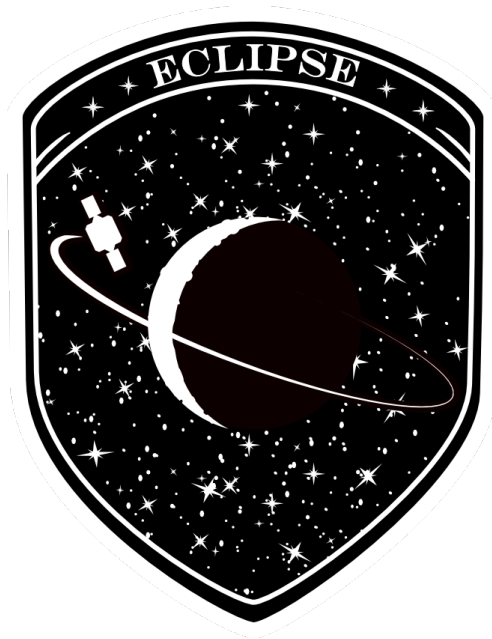




Case Paper

Eclipse NMBU

Transitional C-suite Case – ECL-H2026-CASE-08

ECLIPSE

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Document ID: ECL-H2026-CASE-08

Proposed by: the Board.

Position on the Agenda: immediately after the Bylaw Amendment (ECL-H2026-CASE-07A/07B/07C) and immediately before the Election of Board Members (ECL-H2026-CASE-06), per the Master Drafting Prompt §10 and the Agenda, ECL-H2026-AGD-01.

Background

The roles being elected at this General Assembly depend on whether the Bylaw Amendment (ECL-H2026-CASE-07A) passes. Rather than write two separate Election Cases, this Case fixes – conditionally – which four roles the following Election Case elects into, so the electorate knows exactly what they are voting for before the Election Case opens.

Proposed Resolution

The General Assembly resolves that the roles to be elected under the Election of Board Members Case, ECL-H2026-CASE-06, are:

- **If the Bylaw Amendment (ECL-H2026-CASE-07A, as amended) passed in Stage 1 of ECL-H2026-CASE-07C:** CEO, CTO, CBO and CPO, as defined in the proposed New Bylaws §12.1.
- **If the Bylaw Amendment failed:** CEO, CTO, CFO and CMO, as defined in Old Bylaws §5.1–§5.5 – i.e. the current structure continues unchanged.

Election mechanics

In both branches, the election itself is conducted under **Old Bylaws §4.7 election mechanics** (majority vote per role; a second round if no candidate achieves a majority; blank votes counted in the mass, with the option to remove blank votes from the mass in a further round per §4.7.2), **not** the New Bylaws' Election and Control Committee process (§11 of ECL-H2026-CASE-07A). This is because the Election and Control Committee does not yet exist – it can only be created and elected at a future Supplementary General Assembly once the New Bylaws (if adopted) are in force. Even if the Bylaw Amendment passes at this meeting, **this meeting's own election** still runs on Old Bylaws §4.7 mechanics.

Financial Consequences

None directly.

Attachments

Bylaw Amendment Proposal (ECL-H2026-CASE-07A/07B/07C), Candidate Documentation (ECL-H2026-CAND-01), Election Ballots – ECL-H2026-BALLOT-02A (CEO/CTO/CBO/CPO, used if the Amendment passed) and ECL-H2026-BALLOT-02B (CEO/CTO/CFO/CMO, used if the Amendment failed).